

25PSCV03194 25PSCV03194

County: los-angeles

Division: Civil Law and Motion

Department: 6

Hearing date: 2026-09-24

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Case Number: 25PSCV03194 Hearing Date: September 24, 2026 Dept: 6

CASE

NAME: Victor

Payan v. San Gabriel Valley Water Company, et al.

Plaintiff

Victor Payan's Motion to Bifurcate Defendant San Gabriel Valley Water Company's

Cross-Complaint Claims

TENTATIVE

RULING

The Court DENIES Plaintiff Victor Payan's Motion to Bifurcate Defendant San Gabriel Valley Water Company's Cross-Complaint Claims without prejudice to the trial being conducted in phases. A new trial date and related deadlines will be set at the October 6, 2026 trial-setting conference.

Defendant/Cross-Complainant San

Gabriel Valley Water Company is ordered to give notice of the Court's ruling within five calendar days of this order.

BACKGROUND

This is an auto accident case. On September 3, 2025, plaintiff Victor Payan (Plaintiff) filed this action against defendants San Gabriel Valley Water Company (Water Company) and Dany Alejandro Alvarado (Alvarado) (collectively, Defendants), alleging two causes of action for motor vehicle and general negligence.

On August 10, 2026, Water Company filed a cross-complaint against cross-defendant Glendora Employment Agency, Inc. (Employment Agency) and Roes 1-20, alleging causes of action for comparative equitable indemnity, contribution, and declaratory relief.

On August 25, 2026, Plaintiff moved to bifurcate Water Company's cross-complaint claims. On September 11, 2026, Defendants opposed the motion. On September 15, 2026, Plaintiff replied to Defendants' opposition.

LEGAL STANDARD

"The court may, when the convenience of witnesses, the ends of justice, or the economy and efficiency of handling the litigation would be promoted thereby, on motion of a party, after notice and hearing, make an order, no later than the close of pretrial conference in cases in which such pretrial conference is to be held, or, in other cases, no later than 30 days before the trial date, that the trial of any issue or any part thereof shall precede the trial of any other issue or any part thereof in the case, except for special defenses which may be tried first pursuant to Sections 597 and 597.5." (Code Civ. Proc., § 598.)

"The court, in furtherance of convenience or to avoid prejudice, or when separate trials will be conducive to expedition and economy, may order a separate trial of any cause of action, including a cause of action asserted in a cross-complaint, or of any separate issue or of any number of causes of action or issues, preserving the right of trial by jury required by the Constitution or a statute of this state or of the United States." (Code Civ. Proc., § 1048, subd. (b).)

DISCUSSION

Summary of Arguments

Plaintiff

moves under Code of Civil Procedure sections 1048, subdivision (b), and 598 to try his negligence claims separately from, and before, Water Company's cross-complaint against Employment Agency for comparative equitable indemnity,

contribution, and declaratory relief. Plaintiff argues the cross-claims are contingent and downstream — arising only if he recovers — and present a discrete employer-to-employer allocation dispute that need not be resolved to adjudicate his claims, especially because Water Company has admitted Alvarado was its employee acting in the course and scope of his employment. Plaintiff contends Water Company's late cross-complaint should not displace his trial date, that separate trial avoids prejudice and confines collateral staffing evidence to a later phase that a first verdict may narrow or eliminate, and that any overlap is limited. Plaintiff asks the Court to keep his claims on the earliest available date, stay discovery directed solely to Water Company – Employment Agency allocation, or alternatively order a two-phase trial.

In

opposition, Defendants argue the October 28, 2026 trial date was already vacated by the August 5, 2026 order granting leave to file the cross-complaint, and that Rule 3.1332 does not revive a vacated date. They contend bifurcation would create two duplicative trials because the claims arise from the same collision and share overlapping issues — Alvarado's negligence and employment, the parties' respective control, comparative fault, causation, and damages — requiring the same witnesses to testify twice and risking inconsistent findings. Defendants argue Employment Agency, which has been served and will appear by October 1, 2026, has a right to litigate the underlying issues, so Plaintiff's proposal either impairs that right or forces relitigation.

Defendants further assert the case is not trial-ready given Plaintiff's newly disclosed throat condition requiring a November ENT examination, uncompleted expert discovery, and a pending discovery conference, and that the proposed allocation-only discovery stay is unworkable because joint-employment evidence overlaps with the underlying claims. Defendants ask the Court to deny the motion and set a new trial date at the October 6, 2026 trial-setting conference, or, if bifurcation is granted, to set a reasonable non-October date.

In

reply, Plaintiff contends that Defendants identify no prejudice from bifurcation itself — only from the trial date — and that severing the cross-complaint removes the reason the date was vacated. Plaintiff argues section 1048, subdivision (b), expressly authorizes separate trial of a cross-complaint and that American Motorcycle endorses this as the cure for indemnity-cross-complaint prejudice, with its caveat that this is not an attractive alternative limited to cases where a cross-defendant must litigate

the plaintiff's proportionate fault — inapplicable because Employment Agency's exposure is derivative of Alvarado's fault, which the first trial will resolve. Plaintiff contends that "two duplicative trials" is a fiction because the second phase would resolve only the narrow Water Company– Employment Agency allocation using contracts and employment records, not retry the collision. Plaintiff asserts his throat and swallowing complaints were disclosed at his June 30, 2026 deposition rather than first on August 25, 2026, that remaining discovery and the ENT examination bear only on which trial date to set, and that Loney's reasoning condemns letting a late cross-complaint reopen pleadings and delay trial. Plaintiff narrows the requested stay — stating no objection to parallel cross-complaint discovery so long as it is not used to continue his trial — and requests the earliest available trial date.

Analysis

The Court finds Plaintiff's motion unpersuasive. Code of Civil Procedure sections 1048, subdivision (b), and 598 vest the Court with discretion to order separate trials only where doing so furthers convenience, avoids prejudice, or is conducive to expedition and economy, and the moving party bears the burden of demonstrating that those purposes would be served. (Code Civ. Proc., §§ 598, 1048, subd. (b).) Because Plaintiff's negligence claims and Water Company's indemnity cross-claims arise from the same May 23, 2024 collision and the same alleged joint-employment relationship, separate trials would multiply proceedings rather than streamline them. The Court finds the interests of judicial economy are better served by a single trial of all claims.

Moreover, the two proceedings would substantially overlap:

Alvarado's alleged negligence, his employment and the respective control exercised over him, Plaintiff's comparative fault, causation, and damages are common to both Plaintiff's claims and the allocation dispute, and would require the same percipient, corporate, and expert witnesses to testify twice before two juries. (See generally Compl.; Cross-Compl.) That duplication risks inconsistent findings and imposes an unnecessary burden on the Court, the parties, and the witnesses. Severance would also implicate Employment Agency's right to litigate the underlying issues because binding Employment Agency to first-phase findings would require its meaningful participation in that phase, whereas not binding it would force those same issues to be retried. Severance of a comparative-indemnity claim "may at times not be an attractive alternative," precisely because a cross-defendant retains the right to litigate

the plaintiff's proportionate fault. (Am. Motorcycle Assn. v. Superior Ct. (1978) 20 Cal.3d 578, 606.) Those concerns are best avoided by trying all claims together.

Finally, Plaintiff's related request to preserve the October 28, 2026 trial date is moot because the Court's August 5, 2026 order vacated that date when it granted leave to file the cross-complaint, and California Rules of Court, rule 3.1332, subdivision (a), does not revive a date the Court has vacated. (Minute Order (8/5/26); see Cal. Rules of Court, rule 3.1332, subd. (a).) Independent of bifurcation, the matter is not yet ready for trial: Plaintiff's throat and swallowing complaints require an ear-nose-throat examination not available until November 2026, and expert discovery has not yet commenced. (Vandenberghe Decl., ¶ 4.) The proposed stay of discovery directed "solely" to Water Company–Employment Agency is problematic because evidence of who hired, trained, supervised, and controlled Alvarado bears on both the allocation dispute and the agency and course-and-scope issues in Plaintiff's own case, and Plaintiff has in any event withdrawn his objection to parallel cross-complaint discovery. (Reply, 6:6-12.) Permitting all parties, including Employment Agency, to complete discovery and mediate together preserves the prospect of resolving the entire action in a single proceeding.

Based on the foregoing, the Court DENIES the motion without prejudice to the trial being conducted in phases. A new trial date and related deadlines will be set at the October 6, 2026 trial-setting conference.

CONCLUSION

The Court DENIES Plaintiff Victor Payan's Motion to Bifurcate Defendant San Gabriel Valley Water Company's Cross-Complaint Claims without prejudice to the trial being conducted in phases. A new trial date and related deadlines will be set at the October 6, 2026 trial-setting conference.

Defendant/Cross-Complainant San Gabriel Valley Water Company is ordered to give notice of the Court's ruling within five calendar days of this order.